

November 18, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20182
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes testing of lithium cells and batteries in accordance with the UN Manual of Tests and Criteria, Sixth Revised Edition. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that each shipping paper must bear the special permit number, §§ 172.301(c) and 172.302(c) in that each package must be marked with the special permit number and § 173.185(a)(1) in that testing lithium cells and batteries in accordance with the UN Manual of Tests and Criteria, Sixth Revised Edition is not authorized, except as specified herein.

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5. BASIS: This special permit is based on the application of A123 Systems LLC dated January 13, 2016, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated September 7, 2016.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A
Lithium metal batteries <i>including lithium alloy batteries</i>	9	UN3090	N/A

7. CELL AND BATTERY TESTING:

a. Lithium cells and batteries may be tested in accordance with the UN Manual of Tests and Criteria, Sixth Revised Edition, including the requirements that relate to the shock test (T.4) and the external short circuit test (T.5), which is scheduled to take effect on January 1, 2017.

b. Each cell or battery type authorized under the terms of this special permit must be fully and successfully tested in accordance with the requirements of Section 38.3 of the UN Manual of Tests and Criteria, Sixth Revised Edition.

c. The number of cells and batteries subject to testing under the UN Manual of Tests and Criteria, Sixth Revised Edition is identified in the chart below:

TESTS	PRIMARY		SECONDARY	
	Number of Cells	Number of Batteries	Number of Cells	Number of Batteries
T1-T5	20	8 Small 4 Large	10	8 Small 4 large
T6	10	Not required	5	Not Required

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TESTS	PRIMARY		SECONDARY	
	Number of Cells	Number of Batteries	Number of Cells	Number of Batteries
T1-T5	20	8 Small 4 Large	10	8 Small 4 large
T7	Not required	Not required	Not Required	8 Small 4 large
T8	10	Not required	20	Not Required

d. When batteries that have passed all applicable tests are electrically connected to form an assembled battery in which the total lithium content of all anodes, when fully charged, is more than 500 grams, or in the case of a lithium ion battery, with a Watt-hour rating of more than 6,200 Wh, the assembled battery does not need to be tested if the assembled battery is of a type that has been verified as preventing overcharge, short circuits and over discharge between the batteries.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained and made available for examination at each location where cells or batteries are tested.

b. A current copy of this special permit must be maintained and made available for examination at each location where cells or batteries are manufactured.

c. The final hazard classification for these cells and batteries is valid for all persons who receive these cells and batteries provided no modification or change is made to the cells or batteries.

9. MODES OF TRANSPORTATION AUTHORIZED: As authorized by the Hazardous Materials Regulations for lithium cells and batteries.

10. MODAL REQUIREMENTS: None as a requirement of this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

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12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve Hwang/NICKS